



May 7th 2018 Delaware County Commissioners Meeting

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=Ita1lf00400
Publication Date	2018-05-08T15:48:33Z
Target Category	delaware_county

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Delaware County Commissioner Meeting Summary

Meeting Date: May 7, 2018

1. Pre-Meeting Hearings & Committee Work Sessions

- **Session Type & Topic:** 00:00:44 Public Hearing regarding 16 parcels located in the 812 coalition area (a neighborhood revitalization coalition in South Central and Thomas Park Avondale neighborhoods).
- **Summary of Discussion:** Jenna Ashby representing Habitat for Humanity spoke regarding the inclusion of these 16 parcels. No other public testimony was offered. A motion was made and carried to close the public hearing.
 - **Action & Vote Disposition:** Passed Unanimously (Roll Call: Mr. Regan - Yes, Mr. Henry - Yes, Mr. King - Yes).

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Convened by the presiding officer as the Delaware County Commissioner meeting on Monday, May 7, 2018.

- **Attendance:**
 - **Members Present:** Mr. Henry, Mr. Regan, Mr. King
 - **Members Absent:** Not specified
 - **Presiding Officer:** Identified as the board president/chair.
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3. Preliminary & Procedural Business

- **Ceremonial Openings:** Recitation of the Pledge of Allegiance.
 - **Approval of Minutes:**
 - **Item Identifier:** Approval of minutes for the April 16, 2018 meeting.
 - **Action & Vote Disposition:** Approved by Voice Vote.
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4. Substantive Business & Board Action

- **00:01:35 Board of Zoning Appeals (BZA) Appointment**
 - **Sponsor / Presenter:** Board Commissioners.
 - **Deliberation Summary:** Discussion regarding the appointment of Leslie Matheson to the BZA.
 - **Action & Vote Disposition:** Approved (Roll Call: Mr. Henry - Yes, Mr. Regan - Yes, Mr. King - Yes).
- **00:02:52 BI Agreement (Financing / Rental Units)**
 - **Sponsor / Presenter:** Cher McCormack, DC Finance Manager.
 - **Deliberation Summary:** Agreement to remove fees previously paid (9 cents per unit) since all units are now being rented. Requires board signature to eliminate the fee.
 - **Action & Vote Disposition:** Approved (Roll Call: Mr. Henry - Yes, Mr. Regan - Yes, Mr. King - Yes).
- **00:03:37 Ford Lease Purchase Finance Agreement**
 - **Sponsor / Presenter:** County staff / administration.
 - **Deliberation Summary:** Purchase agreement for a brand new 2018 Ford Explorer with a face package (the final/third Explorer purchased). It will replace a problematic 2008 Chevy Impala currently used by Ron Jones. Delivery expected in August.
 - **Action & Vote Disposition:** Approved (Roll Call: Mr. Regan - Yes, Mr. Henry - Yes, Mr. King - Yes).
- **00:04:39 Albany INDOT Agreement (Development of State Route 28)**
 - **Sponsor / Presenter:** County administration.
 - **Deliberation Summary:** A 10-year agreement discussed between Albany, the county, and the state concerning a potential road near the Dollar General Store in Albany. Deemed appropriate for the county to enter.

- **Action & Vote Disposition:** Approved (Roll Call: Mr. Henry - Yes, Mr. Regan - Yes, Mr. King - Yes).
- **00:05:37 Resolution No. 2018-017: Tax Sale Certificates for Non-Profit Corporation**
 - **Sponsor / Presenter:** Board Commissioners / Greater Habitat.
 - **Deliberation Summary:** Resolution making a final determination regarding tax sale certificates to be assigned to a non-profit corporation (Greater Habitat).
 - **Action & Vote Disposition:** Adopted (Roll Call: Mr. Regan - Yes, Mr. Henry - Yes, Mr. King - Yes).
- **00:06:12 Revised Capital Edit Plan**
 - **Sponsor / Presenter:** Auditor's office / County administration.
 - **Deliberation Summary:** The plan was revised to include current/ongoing projects, close out finished ones, and add Project 62 (purchase of the jail property). The auditor noted a lack of funding for the yearly YOC fee, leading to a temporary motion to table. Discussion ensued regarding handling appropriations and amendments.
 - **Action & Vote Disposition:** Approved/Amended by Roll Call (Mr. Henry - Yes, Mr. Regan - Yes, Mr. King - Yes).
- **00:08:18 Ordinance for Moratorium on Confined Animal Feeding Operations (CAFOs)**
 - **Sponsor / Presenter:** Introduced at the request of Commissioner Regan; reviewed by legal counsel.
 - **Deliberation Summary:** Proposed ordinance establishing a one-year moratorium (or until repealed/replaced by new rules, with a suggested target deadline of October 1, 2018) on building permits for new or expanded Confined Feeding Operations (CFOs) and Confined Animal Feeding Operations (CAFOs) in the farm zone, pending Plan Commission review and creation of permanent regulations.
 - **Item-Specific Public Input:**
 - **00:10:22 Constance Ray:** Asked for clarification on whether the moratorium holds all applications including pending or incomplete ones until zoning issues are addressed. Confirmed it applies to newer or expanded operations not yet fully permitted.
 - **00:12:51 Fred Kasher:** Spoke from Shamrock Lakes regarding pollution/fish kills from neighboring operations across the county line and inquired about public input on the committee.
 - **00:15:35 Marta (Plan Commission):** Clarified that the Plan Commission started public hearings on the matter the prior Thursday and outlined committee members (Elizabeth Driscoll, Jenny Irving, Jeff Turner, Mark Carter, Eugene whitehead, Joe Russell).
 - **00:19:27 Resident:** Shared concerns regarding runoff pollution (referencing Lake Erie dead zones) and runoff from large farms.
 - **Action & Vote Disposition:** Approved to send the ordinance to the Planning Commission (Roll Call: Mr. Henry - Yes, Mr. Regan - Yes, Mr. King - Yes).

5. Open Public Comment / Citizen Forum

- **00:22:20 Robert Ray:** Reminded commissioners of a similar position the county was in ten years ago, referenced recent legal outcomes and information binders previously provided, and stated that residents are watching closely to see how the county handles the CAFO issues.
 - **00:24:03 Jennifer Irving:** Thanked the commissioners for advancing the CAFO moratorium and inquired about scheduling special meetings if the Plan Commission's timeline falls after upcoming commissioner dates.
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6. Administrative Updates & Adjournment

- **Staff / Board Announcements:** Mention of upcoming Plan Commission meeting dates (June 7). Payment of claims approved in the amount of \$1,121,261.23.
 - **Adjournment:** Motion to adjourn carried successfully. Time not explicitly stated.
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